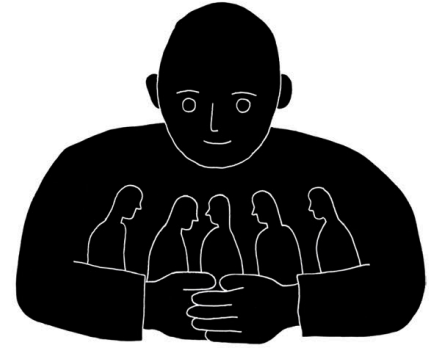




the right to justice of every free man, a right later enshrined in the *Habeas Corpus* Act of 1679. In England and Wales, poverty, too, was addressed in the Poor Law Act of 1601, which provided a very basic safety net for those at the bottom of society.

While criminal, property, and commerce laws have existed since ancient times and been steadily adjusted and refined, legislation concerning civil and human rights had to be fought for and even today is not universally adopted. The English Bill of Rights (1688–1689) that ensured the power of an elected parliament came in the wake of the English Civil War, the execution of Charles I, and the absolute rule of both Charles II and James II. The Napoleonic Code of 1804 was built around key ideas of The Declaration of the Rights of Man and of the Citizen that emerged at the start of the French Revolution. It took a century of campaigning to abolish most slavery, and bloody protests to secure women's voting rights.

As the Industrial Revolution took shape in the 18th and 19th centuries, workers began to recognize their collective muscle. The UK's Trade Union Act of 1871 gave workers a political voice, and trade unionism gained strength

across the globe, prompting better and safer working conditions. In Germany, new laws compelling employers to provide sickness funds for injured workers were passed in 1883 and 1884.

To accept the need for new or revised laws, governments have to be open to change. In more than half of countries with populations of at least 500,000, some form of democratic government has now evolved, with separate branches for the creation, administration, and enforcement of the law by the legislature, executive, and judiciary respectively. Separating the powers in this way guards against the abuse of power and permits each branch to check and balance the powers of the others.

International lawmaking

Global commerce in both goods and services has greatly increased in the past century, requiring rafts of new international legislation. Nations also have to work together to find legal measures to combat spiraling international crime. Organizations such as the United Nations, established to preserve peace after World War II, and trading blocs such as the European Union have extended their scope to found institutions capable of making

legally binding regulations regarding matters such as trade, human rights, and international crime. INTERPOL collaborates with the police forces of more than 190 countries to tackle organized crime, terrorism, and cybercrime. A newer area of concern is how measures to protect the environment can be enforced.

This book presents, in roughly chronological order, some of the big ideas that have influenced the law. In each case, it describes the social and political climate that produced them, people who championed them, and the role these concepts have played in shaping the societies they appeared in and others, too. ■



Laws must be justified by something more than the will of the majority. They must rest on the eternal foundation of righteousness.

Calvin Coolidge

30th US president (1923–1929)

